

Court No. - 21

Case :- WRIT - C No. - 12177 of 2024

Petitioner :- M/S Procapitus Business Park Pvt. Ltd.

Respondent :- Uttar Pradesh Power Corporation Ltd. And 4 Others

Counsel for Petitioner :- Mohd. Afzal, Shivangi Singh

Counsel for Respondent :- Abhishek Srivastava, Krishna Agarawal

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. Supplementary affidavit filed today is taken on record.
2. The instant petition has been filed praying for a writ of mandamus directing the respondent-Authorities to restore the electricity connection to the petitioner's premises forthwith and for a mandamus directing them to decide the representation dated 07.04.2024.
3. The case of the petitioner is that it is in possession of the premises as lessee, owned by respondent No. 5. The lease agreement between the petitioner and respondent No. 5 provided that the lessor would apply for electricity connection, but it shall be in the name of lessee. However, it appears that the electricity connection bearing Account No. 1463168997 was in the name of respondent No. 5. There appears to be some dispute between the lessor and the lessee and the lessor wrote to the Electricity Department on 02.04.2024 for disconnecting the electricity supply. The Electricity Department acting on the said letter had disconnected the electricity supply.
4. It is pointed out by the learned counsel for the petitioner that the petitioner has also applied for electricity connection in its own name on 08.04.2024 and the said application is still pending. It is submitted that the respondent Electricity Department be directed to release the electricity connection on the basis of the said application.

5. Shri Abhhishek Srivastava, learned counsel for the respondent Electricity Department submits that the petitioner has not submitted indemnity bond as per Annexure 4.2 as stipulated under clause 4.4 of the Uttar Pradesh Electricity Supply Code, 2005. He submits that as soon as all formalities as required under law are completed, respondent Electricity Department will take appropriate decision on the said application.

6. Learned counsel for the petitioner submits that the petitioner will complete all the formalities within a week and prays for a direction to the respondent Electricity Department to take final decision in the matter expeditiously.

7. It has also been brought to the notice of the Court that the petitioner has further sub-let the premises and, therefore, the respondent would also be required to examine whether the indemnity bond which is furnished by the petitioner would suffice or not.

8. Accordingly and having regard to the submissions made, we **dispose of** the instant petition with liberty to the petitioner to complete all formalities as required under law and as soon as the formalities are completed, the respondent Electricity Department will take appropriate decision in the matter in accordance with law after hearing all concerned, including the lessor.

9. Needless to say that the decision would be taken not later than two weeks from the date the formalities are completed.

Order Date :- 15.4.2024

Sazia

(Kshitij Shailendra,J.) (Manoj Kumar Gupta, J.)

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

Order on Civil Misc. Correction Application No.2 of 2024.

1. Considered.

2. We find no mistake in our order dated 15.04.2024 as the facts mentioned in 'paragraph 7' of our order dated 15.04.2024 were based on the statement made by Ms. Shivangi Singh during course of arguments. Therefore, the application for correction is sans merit and is, accordingly, **rejected**.

Order Date :- 23.4.2024

Jyotsana

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

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Counsel for Respondent :- Abhishek Srivastava, Krishna Agarawal

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

Ref: Civil Misc Modification Application No. 3 of 2024

As prayed, list on 23.05.2024.

Order Date :- 15.5.2024

Sazia

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

Order on Modification Application

1. The applicant (petitioner) has sought modification of our order dated 15.04.2024 to the extent it is mentioned in paragraph no.7 of our order dated 15.04.2024 that the petitioner had sub-let the premises and, therefore, the respondent-Authority before sanctioning electricity connection in the name of the petitioner, would have to examine whether the indemnity bond furnished by the petitioner would suffice or not.

3. Shri Md. Afzal, learned counsel for the petitioner submits that there was some miscommunication between him and the petitioner and in fact, there has been no sub-letting. Specific assertion has been made to the said effect in paragraph no.3 of the affidavit filed in support of the application.

4. Having regard to the aforesaid submission, we modify our order dated 15.04.2024 to the extent it is noted in paragraph no.7 thereof that the premises has been sub-let. We leave it open to the respondent-Electricity Department to examine all aspects while taking decision on the application of petitioner for sanction of electricity connection in its name.

5. Application stands **disposed of** accordingly.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 2.8.2024

Ankit.